

NON-DISCLOSURE AGREEMENT (NDA)

This Non-Disclosure Agreement (the "Agreement") is entered into as of 11-26-24, by and between:

1. **Disclosing Party:** Jacob Benjamin Bevier, residing/located at 105 Pendleton Trail, Tyrone, GA, 30290, the inventor and owner of the "Dumpster Diver," a self-righting trash bin cleaning device, and

2. **Receiving Party:** Apollo Braganini II

Address: 8129 E D Ave, Richland, MI 49083

1. Purpose

The Disclosing Party possesses proprietary and confidential information, including but not limited to the design, mechanics, manufacturing process, and marketing strategy related to the invention, "Dumpster Diver" (the "Confidential Information"). The purpose of this Agreement is to protect the confidentiality of this information as the Receiving Party evaluates potential collaboration, manufacturing, or investment opportunities with the Disclosing Party.

2. Definition of Confidential Information

For the purposes of this Agreement, "Confidential Information" includes, but is not limited to:

- Design schematics, drawings, dimensions, and specifications of the "Dumpster Diver."
- Functional descriptions, assembly processes, and materials used in the invention.
- Any related documentation, including **Provisional Patent Application No. 63/723,626 (Confirmation No. 7443)**.
- Marketing, distribution, and business strategies related to the product.
- Discussions, emails, notes, or other records arising from communications regarding the "Dumpster Diver."

Confidential Information does **not** include information that:

1. Was publicly available or known prior to the date of disclosure.
2. Becomes publicly known through no fault of the Receiving Party.
3. Is independently developed by the Receiving Party without reference to the Disclosing Party's Confidential Information.

3. Obligations of the Receiving Party

The Receiving Party agrees to:

1. Maintain all Confidential Information in strict confidence and take reasonable steps to prevent unauthorized disclosure.
2. Use the Confidential Information solely for the purpose of evaluating or furthering collaboration with the Disclosing Party.
3. Not disclose, share, or reproduce Confidential Information with any third party without the prior written consent of the Disclosing Party.
4. Return or destroy all Confidential Information, including copies, upon the Disclosing Party's written request.

4. Exclusions

The Receiving Party may disclose Confidential Information if required by law, but must provide written notice to the Disclosing Party before doing so, to allow the Disclosing Party to seek a protective order or other appropriate remedy.

5. Ownership

All Confidential Information remains the property of the Disclosing Party. This Agreement does not transfer any rights, licenses, or ownership to the Receiving Party.

6. Term

This Agreement remains in effect for **five (5) years** from the date of execution or until the Confidential Information is no longer protected under applicable patent laws, whichever occurs first.

7. Governing Law

This Agreement is governed by the laws of the State of **Georgia**, without regard to its conflict of laws provisions.

8. Miscellaneous

1. Any modifications to this Agreement must be made in writing and signed by both Parties.
2. If any provision of this Agreement is deemed unenforceable, the remaining provisions remain in effect.

9. Signatures

Disclosing Party:

Name: **Jacob Benjamin Bevier**

Signature: _____

Date: _____

Receiving Party:

Name: **[Their Full Name/Company Name]**

Signature: _____

Date: **11-26-24**

Apollo Braganini IF